

CAN AN NRI RECOVER PROPERTY ILLEGALLY OCCUPIED BY RELATIVES IN INDIA?

RECOVERY OF POSSESSION, ADVERSE POSSESSION, POWER OF ATTORNEY AND NRI PROPERTY DISPUTES

“It is my property, but my relative has locked the house and refuses to leave. I live abroad—what can I actually do?”

This is a common and legally sensitive problem faced by NRIs who own houses, apartments, agricultural land or other immovable properties in India.

A relative may have originally entered the property with permission, as a caretaker, family member, licensee or temporary occupant. Years later, that same person may refuse to vacate, claim an independent right over the property, produce disputed documents, or even attempt to assert adverse possession.

The NRI's physical absence does not by itself destroy ownership. But recovery of possession must be pursued through the correct legal remedy.

The central question is therefore not merely **“Who owns the property?”** but also:

“What is the legal nature of the occupant's possession, and what remedy is available to the owner?”

WHO HAS LEGAL TITLE TO THE PROPERTY?

The first step is to establish the owner's title through documents such as:

- Registered sale deed;
- Gift deed;
- Settlement deed;
- Partition deed;
- Will and succession documents;
- Release deed;
- Inheritance records;
- Mutation and revenue records;
- Encumbrance Certificate;
- Property-tax records; and
- Other documents establishing the chain of title.

An NRI should not assume that a revenue entry, electricity connection or possession alone conclusively establishes ownership.

The nature of the relative's entry into the property is equally important.

If the relative entered with the owner's permission, that fact may become highly significant when the relative later attempts to claim adverse possession.

Recovery of Possession Under Section 5 of the Specific Relief Act

SECTION 5 OF THE SPECIFIC RELIEF ACT, 1963 provides the principal civil remedy for a person entitled to possession of specific immovable property to recover it in the manner provided by the Code of Civil Procedure.

For an NRI owner whose property has been wrongfully retained by a relative, a properly framed suit may seek appropriate reliefs including:

- Recovery of possession;
- Declaration of title, where necessary;
- Permanent injunction;
- Mandatory injunction;
- Cancellation of fraudulent or voidable documents, where appropriate; and
- Mesne profits or damages, depending on the facts.

The exact relief depends on the title documents, nature of possession, pleadings and circumstances of dispossession.

Section 6: What If the NRI Was Recently Dispossessed?

SECTION 6 OF THE SPECIFIC RELIEF ACT provides a special possessory remedy where a person has been dispossessed of immovable property otherwise than in due course of law.

A critical limitation is that the suit under Section 6 must be **instituted within six months from the date of dispossession**.

This remedy is concerned primarily with prior possession and unlawful dispossession rather than finally deciding title.

Therefore, an NRI who has recently discovered that a relative has taken possession should not delay legal advice merely because the NRI believes that the property unquestionably belongs to them.

The six-month period under Section 6 is particularly important.

At the same time, the six-month limitation for a Section 6 proceeding should **not be confused with the limitation applicable to every title-based possession suit**. Different causes of action and remedies may attract different limitation rules.

WHAT IF MORE THAN SIX MONTHS HAVE PASSED?

The expiry of six months does not automatically mean that an NRI has lost ownership or every possible remedy.

Depending on the facts, the owner may have to pursue an appropriate regular civil action based on title and entitlement to possession.

The limitation analysis must then be undertaken under the Limitation Act, 1963, considering the nature of the claim, the date when possession became adverse, any acknowledgment, fraud, concealment or other legally relevant circumstances.

This is one reason why an NRI should obtain a title-and-possession assessment rather than relying on a simple assumption that **“12 years have passed, so the relative owns the property.”**

The 12-Year Rule Does Not Automatically Give a Relative Ownership

One of the most common misconceptions in NRI property disputes is:

“My relative has been living there for more than 12 years, so the property has automatically become theirs.”

That is not a safe statement of law.

Adverse possession requires more than mere long possession.

The claimant must establish the legally necessary elements of adverse possession, including the character of possession and the requisite hostile assertion against the true owner.

The Supreme Court has repeatedly emphasized that the claimant must establish the necessary ingredients rather than relying merely on the passage of time.

PERMISSIVE POSSESSION IS DIFFERENT FROM ADVERSE POSSESSION

This distinction is particularly important in disputes between relatives.

Suppose an NRI allows a brother, sister, cousin, parent or other relative to occupy the property without rent.

That permission does not automatically transfer ownership.

The relative's possession may initially be **permissive possession**.

For adverse possession to arise, there must be a legally sufficient transformation from permissive possession into hostile possession, supported by the facts and evidence.

In **THAKUR KISHAN SINGH V. ARVIND KUMAR, (1994) 6 SCC 591**, the Supreme Court recognized that possession that began permissively does not become adverse merely because it continues for a long period.

Therefore, an NRI should preserve evidence showing:

- When the relative entered;
- Why permission was given;
- Whether rent was ever paid;
- Whether the property was entrusted as a caretaker arrangement;
- Whether the owner continued paying taxes or expenses;
- Whether correspondence acknowledged the owner's title; and
- When the relative first asserted an independent right.

A Reported NRI-Family Property Dispute

In **G. NARAYAN REDDY V. P. NARAYANA REDDY, C.C.C.A. NO. 86 OF 2005**, decided on 19 February 2016, the Andhra Pradesh High Court dealt with a family property dispute involving an NRI plaintiff, possession of property in Hyderabad and competing claims concerning the nature of possession and an alleged gift.

The case demonstrates an important practical point:

NRI status does not make a property dispute legally impossible—but absence from India can create evidentiary and possession-related difficulties that should be addressed promptly.

The outcome of any individual case depends on its own pleadings, documents and evidence.

Do Not Evict the Relative by Force: *RAME GOWDA AND MARIA MARGARIDA*

This is one of the most important safeguards for an NRI owner.

Even where the NRI genuinely believes that the occupant has no title, **self-help eviction should be avoided.**

In ***RAME GOWDA (DEAD) BY LRS V. M. VARADAPPA NAIDU (DEAD) BY LRS., (2004) 1 SCC 769***, the Supreme Court recognized the protection afforded to a person in settled possession against forcible dispossession. The principle is that even the true owner should ordinarily recover possession through due process rather than taking the law into their own hands.

The same due-process principle is reinforced in ***MARIA MARGARIDA SEQUEIRA FERNANDES V. ERASMO JACK DE SEQUEIRA (DEAD) THROUGH LRS., (2012) 5 SCC 370***. The Supreme Court explained that a person in settled possession should not be forcibly dispossessed and that the rights of the parties should be adjudicated through lawful process.

Why this matters to an NRI

An owner should therefore avoid:

- Breaking open locks;
- Removing the occupant's belongings;
- Using private persons to forcibly take possession;
- Threatening or assaulting the occupant;
- Disconnecting essential services merely to compel departure; or
- Attempting to physically remove a person from the property.

The better strategy is to document the title and possession history and pursue the appropriate legal remedy.

Ownership gives the right to seek possession; it does not ordinarily justify private force to obtain it.

WHAT IF THE RELATIVE HAS CREATED A SALE, GIFT OR SETTLEMENT DOCUMENT?

A more serious situation arises when a relative attempts to create or rely upon:

- Sale deeds;
- Gift deeds;
- Settlement deeds;
- Release deeds;
- Powers of Attorney;
- Wills;
- Agreements of sale; or
- Other documents purporting to create rights in the property.

The NRI should immediately obtain certified copies and examine:

1. Who executed the document?
2. Did that person have authority?
3. Was there a valid Power of Attorney?
4. Was the document registered?
5. Was consideration paid?
6. Was there fraud, forgery or impersonation?
7. Does the document relate to the actual property?
8. Has the document been acted upon through mutation or further transactions?

Depending on the circumstances, the appropriate proceedings may include declaration, cancellation, injunction, possession and other consequential reliefs.

Where fraud or concealment is alleged, limitation must also be examined carefully in light of the applicable statutory provisions.

POWER OF ATTORNEY: USEFUL BUT POTENTIALLY DANGEROUS

NRI's frequently appoint relatives or other persons through Power of Attorney because they cannot regularly travel to India.

A carefully drafted POA can assist with:

- Property management;
- Registration;
- Court representation through counsel;
- Tax and municipal matters;
- Rental arrangements; and
- Other specifically authorized transactions.

But an NRI should avoid granting unnecessarily broad powers.

A POA should clearly identify:

- The property;
- The purpose;
- The powers granted;
- Restrictions on sale or transfer;
- Whether consideration can be received;
- Whether sub-delegation is permitted; and

- Whether the authority is revocable.

A person holding a POA does not thereby become the owner of the principal's property.

Senior Citizens: An Additional Statutory Remedy May Exist

Where the property owner is a senior citizen, the Maintenance and Welfare of Parents and Senior Citizens Act, 2007 may provide additional protection in appropriate circumstances.

Section 23 can become particularly important where a senior citizen has transferred property subject to a condition that the transferee will provide basic amenities and physical needs, but the transferee fails to do so.

The Supreme Court's decision in **URMILA DIXIT V. SUNIL SHARAN DIXIT, 2025 INSC 20**, demonstrates the protective role of the Senior Citizens Act in appropriate cases involving conditional property transfers.

However, the remedy should not be presented as an automatic eviction mechanism in every senior-citizen property dispute. The statutory conditions and facts must be examined.

MESNE PROFITS AND COMPENSATION FOR WRONGFUL OCCUPATION

An owner may, depending on the circumstances, also consider a claim for compensation or mesne profits for wrongful occupation.

The amount may depend upon:

- Market rental value;
- Period of unauthorized occupation;
- Nature and location of the property;
- Actual loss suffered;
- Evidence of comparable rent; and
- The relief sought in the proceedings.

An NRI should therefore preserve rental valuations and other evidence demonstrating the economic value of the property.

What If the Relative Is Holding the Original Documents?

This is a common practical problem.

The relative may possess:

- Original sale deed;
- Parent documents;
- Tax receipts;
- Patta/revenue documents;
- Encumbrance records;
- Building approvals; or

- Other property papers.

Possession of the original document does not, by itself, establish ownership.

The NRI should obtain certified copies and reconstruct the title chain independently wherever possible.

The document trail may ultimately become more important than physical possession of the original deed.

Senior Counsel's Strategy for an NRI Client

A sensible strategy generally begins with five questions:

Step 1 — Establish title

Collect and verify the complete chain of title.

Step 2 — Establish how possession began

Was the relative a tenant, licensee, caretaker, family member or permissive occupant?

Step 3 — Identify the precise dispute

Is the issue simple refusal to vacate, a title dispute, fraudulent documentation, adverse possession, partition, inheritance or something else?

Step 4 — Preserve evidence

Collect correspondence, bank records, tax payments, photographs, documents, messages and other evidence showing ownership and the nature of possession.

Step 5 — Select the correct remedy

The appropriate proceedings may involve a possession suit, declaration, injunction, cancellation, mesne profits or another statutory remedy.

The objective should not be to file the **fastest-looking case**, but the case that properly addresses the actual legal problem.

Practical Illustrations

Illustration 1 — Cousin living with permission

An NRI allows a cousin to occupy a house while the NRI works abroad.

After several years, the cousin refuses to vacate.

The cousin's long occupation does not automatically establish ownership. The original nature of possession and any subsequent hostile assertion must be examined.

Illustration 2 — Relative changes the locks

An NRI returns to India and discovers that a relative has changed the locks.

The owner should resist the temptation to break the locks or physically remove the occupant.

The circumstances should be documented and the appropriate legal remedy pursued.

This is precisely where the principles in *Rame Gowda* and *Maria Margarida* become practically important.

Illustration 3 — Relative produces a disputed settlement deed

If the occupant produces a settlement deed allegedly executed by the NRI, the immediate question is not simply possession.

The authenticity, authority, execution, registration and legal validity of that document must be examined.

Important Legal Developments

The modern legal position emphasizes:

- Protection against forcible dispossession;
- Proper adjudication of title and possession;
- Careful scrutiny of claims of adverse possession;
- Greater statutory protection for senior citizens in appropriate cases;
- The importance of detailed pleadings and documentary evidence; and
- The need to choose the correct remedy rather than relying on informal methods.

The 2018 amendments to the Specific Relief Act also strengthened the statutory framework governing specific relief, although the applicability of amended provisions depends on the relevant cause of action and the Supreme Court's interpretation regarding prospectivity.

Mistakes NRIs Should Avoid

An NRI should avoid:

- ☐ Assuming that 12 years of occupation automatically transfers ownership.
- ☐ Treating every relative as a trespasser without examining how possession began.
- ☐ Breaking open the property and taking possession by force.
- ☐ Ignoring the six-month period applicable to a Section 6 possessory suit.
- ☐ Signing a broad Power of Attorney without safeguards.

- ☐ Ignoring a suspicious document because the NRI lives abroad.
- ☐ Waiting years before taking action.
- ☐ Relying exclusively on verbal assurances from relatives.

NRI Property Recovery Checklist

Before commencing proceedings, an NRI should ideally gather:

- Title deeds;
- Parent documents;
- Encumbrance Certificate;
- Patta/revenue records;
- Property-tax receipts;
- Building approvals;
- Utility records;
- Rental or licence agreements;
- Power of Attorney documents;
- Correspondence with the occupant;
- Evidence of the date of dispossession, if applicable;
- Photographs and possession evidence;
- Details of any disputed documents;
- Evidence concerning the relative's original permission to occupy; and
- Evidence of any subsequent hostile claim.

FREQUENTLY ASKED QUESTIONS

Can an NRI recover property occupied by a relative?

Yes, an NRI can pursue appropriate legal remedies to recover possession where the NRI has the legal right to possession. The exact remedy depends on title, possession, limitation and the facts.

Can a relative claim adverse possession simply because they lived there for many years?

No. Long possession by itself does not automatically establish adverse possession. The necessary legal ingredients must be proved.

Can I forcibly remove my relative because I am the registered owner?

You should not assume that ownership authorizes forcible self-help eviction. *Rame Gowda* and *Maria Margarida* emphasize the importance of due process where a person is in settled possession.

What is the six-month rule?

Section 6 of the Specific Relief Act provides a special remedy for a person dispossessed otherwise than in due course of law, subject to the statutory requirement that the suit be brought within six months of dispossession.

Can a Power of Attorney holder sell my property?

A POA holder can exercise only the authority validly granted under the instrument and applicable law. The POA itself does not make the agent the owner.

What if the relative has forged my signature?

The matter may involve both civil and criminal consequences. The documents should be preserved and examined immediately, and appropriate proceedings should be considered based on the evidence.

Can a senior citizen obtain special protection?

Potentially, yes. The Senior Citizens Act may provide additional remedies in qualifying circumstances, particularly where property was transferred subject to obligations concerning maintenance and care.

The Core Legal Position

An NRI does not lose property rights merely because a relative occupies the property in India.

But **ownership, possession, limitation and the nature of the occupant's claim must be separately analyzed.**

A relative's long occupation does not automatically establish adverse possession. Conversely, an owner should not attempt to recover possession through force.

The safer legal principle is:

Establish title, identify the character of possession, preserve evidence, act within the applicable limitation period, and recover possession through the appropriate legal process.

The principles in *Rame Gowda v. M. Varadappa Naidu* and *Maria Margarida Sequeira Fernandes v. Erasmo Jack de Sequeira* are particularly important in this context because they reinforce the need to avoid forcible self-help and to use lawful process for resolving possession disputes.

Conclusion

An NRI whose property in India is occupied by a relative may have strong legal remedies, but recovery is not simply a matter of proving that the property is “mine.”

The nature of possession, limitation, title documents, adverse-possession allegations, disputed instruments and the correct statutory remedy all matter.

Most importantly, the owner should avoid private or forcible eviction and proceed through lawful remedies.

For NRIs, **early evidence preservation and timely legal action can make a significant difference in protecting both title and possession.**

Key Authorities

- Specific Relief Act, 1963 — Sections 5 and 6
- Limitation Act, 1963
- *Rame Gowda (Dead) by LRs v. M. Varadappa Naidu (Dead) by LRs.*, (2004) 1 SCC 769
- *Maria Margarida Sequeira Fernandes v. Erasmo Jack de Sequeira (Dead) through LRs.*, (2012) 5 SCC 370
- *Thakur Kishan Singh v. Arvind Kumar*, (1994) 6 SCC 591
- *Karnataka Board of Wakf v. Government of India*, (2004) 10 SCC 779
- *G. Narayan Reddy v. P. Narayana Reddy*, C.C.C.A. No. 86 of 2005, decided 19 February 2016
- *Urmila Dixit v. Sunil Sharan Dixit*, 2025 INSC 20
- Maintenance and Welfare of Parents and Senior Citizens Act, 2007